

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, July 15, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-29486 against Police Officer Brian Dietzel, Tax Registry No. 934770. This case was conferenced on July 2, 2024, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of the total forfeiture of twenty (20) vacation days, after a guilty plea.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
New York City Civilian Complaint Review Board

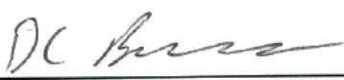


DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-29486
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIETZEL	FIRST BRIAN	M.I. N	COMMAND 107 PRECINCT
SHIELD NO. 11091	TAX REGISTRY NO. 934770	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Brian Dietzel, on or about July 22, 2022, at approximately 1310, while assigned to the 107th Precinct and on duty, in the vicinity of Union Turnpike and 173rd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he issued § 87(2)(b) an unlawful summons for a rear passenger failing to wear a seatbelt properly, without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Brian Dietzel, on or about July 22, 2022, at approximately 1310, while assigned to the 107th Precinct and on duty, in the vicinity of Union Turnpike and 173rd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he issued retaliatory summonses to § 87(2)(b)	PLEADED GUILTY	
3 . Police Officer Brian Dietzel, on or about July 22, 2022, at approximately 1310, while assigned to the 107th Precinct and on duty, in the vicinity of Union Turnpike and 173rd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he issued § 87(2)(b) an unlawful	PLEADED GUILTY	


FIRST DEPUTY COMMISSIONER

8/1/24
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

8/2/24
DATE

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO.
2023-29486BOOK & PAGE NO.
Page 2 of 2

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, DIETZEL	FIRST BRIAN	M.I. N	COMMAND 107 PRECINCT
SHIELD NO. 11091	TAX REGISTRY NO. 934770	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2004	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
summons for disorderly conduct, without sufficient legal authority.		
4 . Police Officer Brian Dietzel, on or about July 22, 2022, at approximately 1310, while assigned to the 107th Precinct and on duty, in the vicinity of Union Turnpike and 173rd Avenue, Queens County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he issued § 87(2)(b) a retaliatory summons for disorderly conduct.	PLEADED GUILTY	
5 . Police Officer Brian Dietzel, on or about July 22, 2022, at approximately 1310, while assigned to the 107th Precinct and on duty, in the vicinity of Union Turnpike and 173rd Avenue, Queens County, abused his authority as a member of the New York City Police Department, in that he provided a misleading official statement against § 87(2)(b) in Criminal Court Summons § 87(2)(b).	PLEADED GUILTY	

DC Buss
FIRST DEPUTY COMMISSIONER

8/1/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

8/2/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, August 1, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-29486 against Police Officer Brian Dietzel, Tax No. 934770 (CCRB Case No. 202204823), with the recommendation that Police Officer Dietzel forfeit twenty (20) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

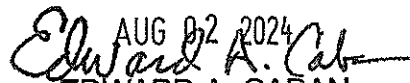
TIK/pk



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED

AUG 02 2024

EDWARD A. CABAN
POLICE COMMISSIONER